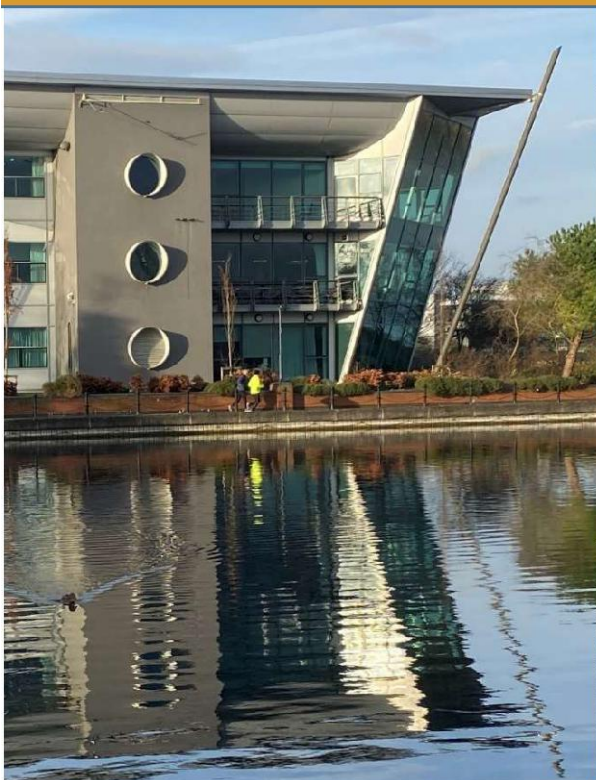




Local Labour Agreements Supplementary Planning Document



Adopted August 2023



City of
Doncaster
Council

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1. Introduction

1.1. Purpose of the Document

- 1.1.1. The Local Labour Agreements SPD has been prepared to supplement Local Plan Policy 3: Employment Allocations to provide advice and assistance to applicants and developers on how the Council will work with and support employers to maximise local employment and training opportunities from new employment developments.

1.2. Policy Basis

National Policy

- 1.2.1. Paragraphs 8 and 9 of the NPPF refer to economic and social objectives and that local circumstances should be taken into account to reflect the character, needs and opportunities of each area.
- 1.2.2. Paragraph 38 of the NPPF states that decisions on proposed development should be approached in a positive and creative way and that the full range of planning tools available should be used. Local planning authorities should work proactively with applicants to secure development that will improve the economic, social and environmental conditions of the area.

Local Policy

- 1.2.3. Local Plan Policy 3: Employment Allocations seeks to secure local labour agreements for employment developments which propose 20 or more direct jobs. A local labour agreement should address the following:
 - 1) An agreed percentage target for local labour;
 - 2) A training and recruitment plan;
 - 3) Commitment to an agreed target for the proportion of local procurement of services and supplies.
- 1.2.4. Paragraph 4.61 of the supporting text to Policy 3 states that the Council will encourage partnership working between employers and local training providers to help develop the skills of the Borough's workforce and sections of the community that are disadvantaged in the labour market. Local labour agreements will cover the area of Doncaster Borough and will include all job vacancies being advertised locally with the support of one of the Council's Business Consultants within [Business Doncaster](#).
- 1.2.5. Local Plan Policy 65: Developer Contributions also identifies the principle of local labour agreements by saying that where necessary and directly related to the development, contributions towards softer interventions to ensure the benefits of the development are maximised by local communities (such as skills and training programmes including local labour agreements) will be sought.
- 1.2.6. If required, Local Labour Agreements will be secured through Section 106 Agreements.

2. What are Local Labour Agreements and why are they Important?

- 2.1 The implementation of Local Labour Agreements will help City of Doncaster Council to support and promote the employment, upskilling, training and development of local people and business both through the construction and implementation stages of employment proposals. Relevant planning applications will be required to submit an Employment and Training Skills Plan. This approach is a way in which the planning system can help in the upskilling of local people. Their importance is particularly pertinent due to Doncaster having significant levels of deprivation with

36% of the population living in areas rated in the top 20% deprived in England. This is something which is also highlighted in the 10 year Borough Strategy: [Doncaster Delivering Together](#): Thriving People, Places and Planet (Prospectus 2020 – 30)¹.

2.2 The objectives of Local Labour Agreements are:

- Encourage the use of local labour from within the developer's project team and the wider company;
- Where feasible (economically and practically), procure goods and services from local contractors;
- Encourage sub-contractors and suppliers to support employment from the local community;
- Demonstrate recruitment and training opportunities within the contractor's company;
- Provide opportunities for local residents to access jobs created during the construction phase of the development and subsequent occupation;
- Reduce economic inactivity in the local area, and
- Encourage and support the development of skills within the local community.

2.3 City of Doncaster Council already has experience of dealing with these agreements/plans. Four have already been implemented or are in the process of being implemented (as at January 2023) and these are:

- The iPort Academy in Rossington is funded by Verdion and is delivered in partnership with Business Doncaster. It has been set up to support the employers at the iPort to meet their recruitment and training needs and to promote all the available opportunities to local residents: [The iPort Academy](#);
- At Unity, near Hatfield/Stainforth, the Unity Training Academy will also be provided through a Section 106 Agreement: [Unity | CONTACT \(unity-yorkshire.com\)](#);
- East of Selby Road, Thorne where an Employment and Training Skills Plan has been secured through a Section 106 Agreement;
- Gateway East at Doncaster Sheffield Airport where an academy, delivered in partnership with Peel Airport Group and Business Doncaster, has been established. This will support employers to meet their recruitment and training needs and promote available opportunities to local residents: [Gateway East Academy: The place for your business in Doncaster](#)

3. Which Sites and Developments will Require Local Labour Agreements?

3.1 Not all development on employment sites will require local labour agreements. They will be sought on developments that propose 20 or more direct jobs and will apply to the new employment allocations as shown on the [Local Plan's Policies Map](#). The sites in listed in Local Plan Table 5: Employment Site Allocations are:

- Balby Carr Bank - site reference EMP01;
- Land off Middle Bank, Baby - site reference EMP2;
- Bankwood Lane, Rossington - site reference EMP3;
- East of Selby Road, Thorne - site reference EMP4;
- Land west of DSA, High Common Lane, Auckley and Hayfield Green - site reference EMP5.

¹ [Doncaster Delivering Together, A Doncaster partnership plan for Thriving People, Places and Planet, Prospectus 2020-30](#)

- 3.2 There is also a Potential Employment Development Site which, if this comes forward for development, will also require local labour agreements. The site is listed in Table 6 of the Local Plan as PED01 on the [Local Plan's Policies Map](#) and is:
- Carcroft Common, Carcroft - site reference PED01.
- 3.3 The Local Plan employment land requirement also includes sites which have planning permission (as of 1 April 2018). As these sites already have planning permission they will, where appropriate, have Section 106 Agreements, and therefore cannot have a local labour agreement/employment and training skills plan included retrospectively. However it is possible that the permissions may lapse or the existing consent may be varied via S73 of the Planning Act requiring a fresh decision to be taken in light of the up-to-date policy position. If this is the case then an agreement through a Section 106 could be sought.
- 3.4 The sites can be found in Chapter 16 of the Doncaster Local Plan (Tables E1 to E8). Both types of sites – allocations and those with permission – can also be found on the [Local Plan's Policies Map](#).

4. How will Local Labour Agreements be Implemented?

- 4.1 If a development meets the requirements set out in policy, the agent/applicant will be asked to liaise with Business Doncaster to determine the content of the Employment and Training Skills Plan and assist the agent/applicant in contacting and working with appropriate partners in the community such as learning providers, schools, job centres, training bodies and local supply chains. Details and requirements will be subject to negotiation on a site-by-site basis and may refer to opportunities being provided both during the construction phase(s) as well as occupation by the end user. There may also be cases where a financial contribution towards support agencies may discharge relevant elements of the Agreement. The standard wording of an Employment and Training Skills Plan is attached as an [Appendix](#) to this SPD. The exact wording of defined terms and percentage of local labour will be agreed with Business Doncaster in relation to each relevant application. Business Doncaster will then monitor the schemes to ensure that developers meet their obligations.

5. Useful Contacts

City of Doncaster Council Planning Department

- Website: www.doncaster.gov.uk/planning
- Phone: 01302 734419
- Email: localplan@doncaster.gov.uk

Business Doncaster

- Phone: 01302 735555
- Email: info@businessdoncaster.com

APPENDIX: Standard s106 Wording

Developer's Covenants:

Local Training and Employment

1. In this Schedule [] (and this Deed as a whole) the following words and expressions shall unless the context requires otherwise have the meaning set out below:

Expression	Meaning
“Business Doncaster”	means the Council's Business Doncaster team or such other Council service department which provides employment and skills support to individuals and businesses from time to time;
“Best Endeavours”	means to take all those steps in their power which are prudent, determined and reasonable to achieve the desired result
“Local Contractors and Sub-Contractors”	means: (a) In the first instance contractors or sub-contractors whose principal place of business is within the administrative area of the Council; and/or (b) In the second instance contractors or sub-contractors whose principal place of business is situated within a 30 (thirty) mile radius of the [Site];
“Local People”	means (a) In the first instance persons whose principal place of residence is situated within the administrative area of the Council; and/or (b) In the second instance persons whose principal place of residence is situated within a 30 (thirty) mile radius of the [Site]
“Employment and Training Skills Plan”	means a plan to facilitate and promote the appointment of Local Contractors and Sub Contractors and Local People in the construction of the Development and the operation of the [Units] in accordance with the [Permitted Uses] such plan to include/ make provision for: • Recruitment through Business Doncaster, Jobcentre Plus and other local employment vehicles; • Work trials and interview guarantees to those attending job clubs providing that they satisfy all essential criteria for the role; • Pre-employment training; • Apprenticeships; • Vocational training (NVQ's); • Work experience for those aged in the 14-16, 16-19 and 19+ age groups; • School and college site visits; • Construction skills certification scheme (CSCS) cards; • Supervisor training;

Expression	Meaning
	• Leadership and management training; • Support with transport, childcare and work equipment; and • In-house training schemes; and • measures and timescales for the quarterly monitoring of the performance targets set out in the plan.

2. **Local Training and Employment**

- 2.1 From the start of the tendering process for the construction of the Development and throughout the period when the Development is under construction to use (or seek to procure that its building contractor uses) Best Endeavours to co-operate and work closely with Business Doncaster to develop an Employment and Training Skills Plan to promote employment opportunities for Local Contractors and Sub Contractors and Local People arising from the construction of the Development.
- 2.2 To use (or procure that its building contractor or Occupier (as the case may be) uses) Best Endeavours to, in accordance with the relevant approved Employment and Training Skills Plan:
- 2.2.1 consult with Business Doncaster with a view to identifying procedures to facilitate the appointment of Local Contractors and Local Subcontractors and Local People in the construction of each Phase and Sub-Phase;
- 2.2.2 use Local Contractors and Sub Contractors and Local People in the construction of the Development;
- 2.2.3 consult with and introduce Business Doncaster to [Occupiers] of each [Unit] as soon as practicable with a view to identifying procedures to facilitate the appointment of Local People in the [Occupation] and/or operation of each [Unit] for the [Permitted Uses] and to facilitate the appointment of Local People and the use of Local Contractors and Sub-Contractors as part of their supply chain;
- 2.2.4 prior to the Commencement of any [Phase] or [Sub-Phase] to submit a Employment and Training Skills Plan to Business Doncaster for approval to facilitate the appointment of a minimum of []% ([] per cent) of Local Contractors and Sub Contractors and Local People in the construction of the [Phase] or [Sub-Phase] and once approved to implement and adhere to the agreed Employment and Training Skills Plan throughout the construction period of the relevant [Phase] or [Sub-Phase]; and
- 2.2.5 prior to the [Occupation] of any [Unit] to submit a Employment and Training Skills Plan to Business Doncaster to facilitate the appointment of a minimum of []% ([] per cent) of Local People in the [Occupation] and/or operation of the [Unit] for the

[Permitted Uses] and once approved to implement and adhere to the agreed Employment and Training Skills Plan for the lifetime of the [Occupation] of the [Unit].

Council's Covenants:

Local Training and Employment

- 1.1 To procure that Business Doncaster provides the [Owner] with all reasonable and necessary assistance required in order to enable the [Owner] to discharge their obligations under Schedule [].
- 1.2 To either approve the Employment and Training Skills Plan(s) submitted in relation to each [Phase] or [Unit] or suggest reasonable amendments within 28 days of receipt by Business Doncaster of the Employment and Training Skills Plan(s). In the event that reasonable amendments are requested, the 28 day period will run again on receipt by Business Doncaster of the revised Employment and Training Skills Plan(s) PROVIDED THAT if Business Doncaster do not either provide approval or request amendments within 28 days of receipt of the Employment and Training Skills Plan(s) it shall be taken to have approved said plan.

